

25TRCV01577 25TRCV01577

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 25TRCV01577 Hearing Date: August 12, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

ANGIE
KIROLOSS

Plaintiff,

Case No.:

25TRCV01577

vs.

[Tentative]
Sustained

TORRANCE
TERRACE INVESTMENTS LP A CALF LIMITED PARTNERSHIP

Defendant.

Hearing

Date: February

18, 2026

Moving Parties: Defendant Torrance Terrace Investments

LP

Responding Party: Plaintiff Angie Kiroloss

HEARING: Demurrer

The

Court considered the moving, opposition, and reply papers.

RULING

The Court sustains the Demurrer without leave to amend.

BACKGROUND

On May

16, 2025, Plaintiff Angie Kiroloss filed the Complaint against Defendant Torrance Terrace Investments LP.

On October 13, 2025,

Plaintiff filed the First Amended Complaint.

On July 14, 2026,

Plaintiff filed the Second Amended Complaint (SAC) against Defendant, alleging causes of action for breach of the covenant of quiet enjoyment, wrongful eviction, fraud, constructive eviction, retaliatory eviction, IIED/NIED, breach of the implied warranty of habitability, and breach of UCL.

On July 8, 2026,

Defendant filed the Demurrer.

On July 14, 2026,

Plaintiff filed the Opposition (titled Motion for Leave to Amend).

On August 8, 2026,
Defendant filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On June 4, 2026, Defendant sent a meet and confer letter to Plaintiff, which Plaintiff did not respond to. The Court finds this is sufficient to satisfy the meet and confer requirement.

Uncertainty

Defendant demurs to the SAC as uncertain. Defendant contends that even under California's liberal pleading rules, a complaint must apprise the adversary of the factual basis of the claim and state the essential facts with particularity sufficient to acquaint a defendant with the nature, source, and extent of the cause of action. (Code Civ. Proc., § 425.10, subd. (a)(1).)

Defendant argues that the SAC does not meet this standard. The caption names only Defendant Torrance Terrace Investment LP, yet the body lists Torrance Terrace Investment LLP, the manager Maggie Olvera, and Torrance Yukon Holdings LLC as defendants, none of whom appears in the caption. No cause of action identifies the defendant against whom it is asserted, and although each refers to Defendants collectively, the incorporated narrative attributes nearly all of the described conduct to Maggie personally, to neighboring tenants, to the Torrance Housing Authority, or to the judge who presided over Plaintiff's prior unlawful detainer trial.

Defendant further notes the twenty-one pages of unbroken, all-capital narrative that cite Civil and Penal Code provisions interchangeably, including a description of the covenant of quiet enjoyment under Civil Code section 1927 as a violation of section 1927 of the Penal Code. Defendant maintains that it cannot determine what Defendant Torrance Terrace Investment LP itself is alleged to have done, which of the eight causes of action it must answer, or how the facts connect to the relief sought. Because the pleading remains ambiguous and unintelligible, Defendant argues that the demurrer for uncertainty should be sustained as to the entire pleading and as to each cause of action.

Here, the SAC does add a section at the end listing the alleged causes of action, each with a conclusory paragraph describing the conduct involved in the cause of action. However, the SAC still includes a 14-page all caps narrative of events without paragraph breaks, which is very difficult to parse through, a summary of events that does not differentiate which actions

are taken by which Defendants, and a cause of action section that does not state which Defendant is being sued for which cause of action, or what underlying facts listed in the 14-page narrative connect to which cause of action. Therefore, the Court finds that the SAC is still uncertain.

Furthermore, as Plaintiff has now had three attempts to rectify the issue and failed to do so, the Court finds that there is no reasonable probability that the defects can be amended.

Therefore, the Court sustains the Demurrer without leave to amend.